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CASE #	CASE NAME	HEARING NAME
CVRI2501815	BATES VS LINTON	DEMURRER

Tentative Ruling:

Moving party: Defendant George Linton, Jr.
Responding party: Plaintiff Kimberly Bates, in pro per

This is a real property dispute filed by Kimberly Bates, acting in pro per, on 4/17/25 alleging 4 causes of action for 1) constructive trust, 2) quid pro quo sexual harassment and coercion, 3) IIED and 4) equitable and injunctive relief. On July 23, 2025, Defendant Linton filed a demurrer to the Complaint. Thereafter, as a matter of right Bates filed a First Amended Complaint realleging the same causes of action and adding a real property claim. On November 21, 2025, Linton demurred to the FAC, which Bates failed to oppose. On February 2, 2026, the court sustained with leave to amend. The Court notes that the minute order is contradictory in that it states “sustained without leave to amend” but then reads “Leave to amend 1st Amended Complaint ... grant” butth 21 ds to [sic] leave to amend.

Bates filed a Second Amended Complaint, in pro per, on February 23, 2026, alleging 4 causes of action for 1) quiet title, 2) constructive trust, 3) declaratory relief, and 4) injunctive relief. Defendant demurred to the SAC. There is a later case filed by Plaintiff Bates against Defendant Linton (CVRI2501942) that had a demurrer on calendar the same day as the demurrer to the SAC in this case

On May 12, 2026, the court sustained the demurrer to the 1st – 4th causes of action with leave to amend. In addition, the court ordered CVRI2501942 consolidated with CVRI2501815, with CVRI2501815 being designated the master file. On June 1, 2026, Bates filed her Third Amended Complaint alleging 5 causes of action for 1) quiet title, 2) constructive trust, 3) promissory estoppel, 4) declaratory relief, and 5) injunctive relief.

Defendant now demurs to all five causes of action on the grounds that they are uncertain and fail to state facts sufficient to constitute a cause of action against him. Plaintiff’s Third Amended Complaint continues to fail to assert any viable cause of action as to the real property at issue and continues to be fatally defective. As Plaintiff has been provided multiple attempts at pleading and continues to be unable to do so, Defendant respectfully requests the Court sustain this demurrer, without leave to amend.

In opposition, Plaintiff Bates asserts the demurrer should be overruled as the TAC is not a bare pleading based on an unsupported oral promise as it is supported by attached documents, and Defendant’s memorandum acknowledges that the TAC contains more factual allegations than the prior versions and identify the very transaction documents and communication on which Plaintiff relies. Therefore, the demurrer confirms that Defendant has notice of the factual theory and the evidence pleaded with it. Further, Plaintiff asserts that the TAC expressly identifies a written instrument executed by Defendant on November 14, 2023, that directs distribution of the Property to Plaintiff by name. Whether Defendant ultimately prevails on the legal effect of that instrument, the alleged agreement, or the asserted equitable interests is not the issue on demurrer.

In reply, Defendant Linton asserts there simply are no factual allegations in the Third Amended Complaint establishing an ownership interest in Defendant's property in Plaintiff's favor under any theory. As a threshold issue, Plaintiff has produced no agreement in writing, signed by Defendant/the party to be charged, conferring a present ownership interest to Plaintiff. Absent this fundamental fact, Plaintiff cannot establish an ownership interest upon which to anchor the causes of action alleged. Contrary to Plaintiff's assertions, the Statute of Frauds is applicable and is not satisfied by a factual showing in the Third Amended Complaint – and cannot be satisfied because such a writing does not exist. Plaintiff points to the November 14, 2023 amendment to the Linton Family Trust as a “writing” demonstrating her ownership interest, which states in Paragraph 6.F(2) that upon Defendant's death, “Trustee shall distribute the real property located at 1762 Park Place Lane, Riverside, California, to KIMBERLY L. BATES...” On its face the document is a revocable trust, and Defendant Linton is named as the Trustee. As the Trustee, Defendant has the power to revoke or amend the revocable Trust - including the power to change the distribution of the subject property. By the causes of action in the Third Amended Complaint, Plaintiff seeks to essentially render the revocable trust “irrevocable” by alleging that she possesses a present ownership interest in the property and therefore prohibiting Defendant from exercising his right as the Trustee to transfer or sell the subject property. Lastly, Linton asserts that Bates' status as a pro per litigant cannot be the basis for liberal treatment in evaluating the sufficiency of the pleading.

The Pleading:

The TAC alleges that the property at issue was acquired by Linton as a gift for Bates, which promises Bates relied on to her detriment. The entire loan and escrow transactions were handled by Bates, with the exception of the loan signing where she was not present due to a work obligation. Linton repeatedly confirmed in writing, and orally, to Bates and others that the property was to be Plaintiff's home. The loan team confirmed in writing that she would be placed on the deed. However, Linton chose not to place Bates' name on the deed and never disclosed this to her.

The parties dated for a period of time. When Bates refused to engage in premarital sex or physical contact with him, he threatened her with court proceedings and eviction conditioning her continued occupancy and ownership on sexual compliance, which had never been a condition of receiving the home. Linton subsequently executed a notarized amendment to his trust directing that the property be distributed to her upon his death. Linton mailed her a copy along with a copy of the grant deed conveying the house to his revocable trust.

Bates seeks to have her equitable ownership in the property recognized to prevent Linton from permanently extinguishing that interest.

At the time of Linton's promise, Bates had secured an alternative investor who was prepared to acquire a home for her. In reliance on Linton's promise, Bates declined to pursue that alternative and instead relied on Linton's representations, which permanently foreclosed another path to homeownership. In addition, in reliance Bates gave up her apartment lease, moved her household into Linton's residence for three months, then again into the property at issue. Bates lost over two years of housing stability and was ultimately wrongfully evicted from the property when she refused to enter into a romantic relationship with Linton.

On or about May 18, 2023, Plaintiff executed a gift letter in connection with the Property transaction at the direction of the loan officer. The gift letter, prepared by the loan team, identified Plaintiff as a domestic partner and documented Plaintiff's financial contribution of \$1,426 to the

transaction. The loan officer advised Plaintiff to sign the gift letter to establish her interest in the Property. This executed document constitutes written evidence of Plaintiff's financial participation in and acknowledged interest in the acquisition of the Property.

Defendant has been unjustly enriched by Plaintiff's reliance and contributions. Defendant acquired property with Plaintiff's active participation, labor, financial contribution, and full coordination of the transaction over more than one year.

In summary, the TAC alleges that Linton promised to buy her the home (which promise is documented in writing), but then ultimately at the loan closing failed to ensure that the deed was in her name. To correct this, Linton put directions in his revocable trust that the property should go to Bates upon his death. Despite Linton's promises, in January 2024 he began eviction proceedings because Bates refused to have a physical relationship with him. On November 4, 2025, Bates moved out under duress, but has not been compensated for the loss of the property promised to her or for the housing instability caused by the eviction proceedings.

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally, a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there

is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) The TAC is not uncertain.

1st Cause of Action for Quiet Title: To state a cause of action to quiet title the complaint must include the following 1) description of property, 2) basis of plaintiff's title, 3) the adverse claims to the title against which a determination is sought, 4) date of which the determination is sought, and 5) prayer for determination of the title of the plaintiff against the adverse claims. (C.C.P. §760.020(a).)

The TAC fails to set forth facts sufficient to state a cause of action for quiet title. Furthermore, the TAC fails to assert any facts upon which a quiet action could be sufficiently pled. The TAC, like the pleadings before it, clearly indicate that Linton promised to gift her the property, but failed to do so. Further, any agreement to convey real property must comply with the statute of frauds. (Civ. Code § 1624(a)(3); *Secrest v. Security Nat'l Mortgage Loan Trust 2002* (2008) 167 Cal.App.4th 544, 552–553.) Here, the TAC does not plead facts that comply with the statute of frauds. While Linton conveyed the property to his trust, then added her as a beneficiary to his revocable trust (indicating she would get the property upon her death), that was a designation he was free to change. It was not a conveyance of the property to Bates as she asserts. That is not a basis for Plaintiff's title. **Accordingly, the court sustains the demurrer without leave to amend.**

2nd Cause of Action for Constructive Trust: “One who wrongfully detains a thing is an involuntary trustee thereof, for the benefit of the owner.” (Civil Code §2223.) A “constructive trust may be imposed in practically any case where there is wrongful acquisition or detention of property to which another is entitled. (*Martin v. Kehl* (1983) 145 Cal.App.3d 228.)

The TAC fails to set forth facts sufficient to state a cause of action for constructive trust. **Accordingly, the court sustains the demurrer without leave to amend.**

3rd Cause of Action for Promissory Estoppel: The purpose of the promissory estoppel doctrine is to bind a promisor to a promise made, without consideration, where there is justifiable reliance. (*Avidity Partners, LLC v. State of California* (2013) 221 Cal.App.4th 1180, 1209; *Laks v. Coast Fed. Sav. & Loan Ass'n* (1976) 60 Cal.App.3d 885, 890.) However, the doctrine has no application here as a bare promise to make a gift in the future, in the absence of consideration, is not legally enforceable. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1053.) The TAC fails to allege facts that could be found to be adequate consideration. **Accordingly, the court sustains without leave to amend as to the 3rd cause of action for promissory estoppel.**

4th Cause of Action for Declaratory Relief: Declaratory relief is authorized pursuant to C.C.P. §1060-1062.5. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (*Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435, 443.) An action for declaratory relief is authorized only when an actual controversy exists. (C.C.P. §1060.) Declaratory relief has two elements a party must satisfy: “ (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations.” (*Jolley v. Chase Home Finance*,

LLC (2013) 213 Cal App. 4th 872, 909.) “[T]he remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal App. 4th 872, 909.) “It is the general rule that, if a complaint shows the existence of a present controversy between the parties of the nature contemplated by section 1060 of the Code of Civil Procedure, it is improper to sustain a general demurrer on a theory that assumes any declaration would necessarily be unfavorable to plaintiff.” (*Safeway Stores, Inc. v. Royal Indem. Co.* (1971) 21 Cal.App.3d 44, 47.)

However, “[w]hile section 1060's language 'appears to allow for an extremely broad scope of an action for declaratory relief'...In the context of a demurrer, the court will evaluate 'whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties....Section 1060 must be read together with section 1061.’” (*Cummins Corporation v. United States Fidelity & Guaranty Company* (2016) 246 Cal. App. 4th 484, 489.) CCP §1061 provides that “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.”

The TAC fails to state facts sufficient to state a declaratory relief cause of action, related to Bates interest in the real property. **Accordingly, the court sustains without leave to amend as to the 4th cause of action for declaratory relief.**

5th Cause of Action for Injunctive Relief: Injunctive relief is an equitable remedy that is anchored to a viable underlying claim, such as a breach of contract. (See *White v. Davis* (2003) 30 Cal.4th 528, 554.) The TAC fails to set forth a viable claim against Linton that could support injunctive relief related to the real property. **Accordingly, the court sustains without leave to amend as to the 5th cause of action for injunctive relief.**

As there are no viable causes of action remaining the matter is dismissed. All future court dates are vacated.